



THE RIGHT TO REMAIN SILENT

MIRANDA V. ARIZONA (1966)

IN CONTEXT

FOCUS

Constitutional law

BEFORE

1791 The Fifth Amendment makes it clear that no one “shall be compelled to be a witness against himself.”

1911 American magazine *The Atlantic* complains that US legal processes are biased in favor of criminals.

1914 The exclusionary rule upholds the rights of all citizens to be “secure” against evidence obtained during an illegal search or seizure.

AFTER

2000 The Supreme Court rules in *Dickerson v. United States* that “Miranda warnings are constitutionally required.”

2010 The Supreme Court’s ruling in *Berghuis v. Thompkins* asserts that any suspect under interrogation must actively assert his or her right to silence or actively waive it.

Complaints mount about **US law enforcement** using threatening methods while **interrogating suspects**.

Courts often overlook the **Fifth Amendment** to the US Constitution, which gives defendants **the right not to self-incriminate**.

Despite **claims** that justice is undermined, the **Miranda decision** helps guard **against police misconduct**.

The Miranda decision upholds the right to silence and to a lawyer.

The Miranda decision, more properly known as *Miranda v. Arizona*, was a landmark Supreme Court ruling in June 1966 that reinforced one of the most famous amendments of the 1791 Bill of Rights, the Fifth—the right to remain silent. The decision was simultaneously hailed as a victory for personal rights and denounced as an unwarranted restriction on law enforcement that would tie the hands of the police in the interests of constitutional propriety.

The Fifth Amendment

The central ruling of the Miranda decision went beyond the Fifth Amendment’s assertion that “No person shall be compelled in any criminal case to be a witness against himself.” Instead, it made it plain that any suspect in police custody must be explicitly informed not only of their right to remain silent but also of their right to refuse to answer questions. At the same time, as allowed for under the Sixth Amendment, any